

Erbermann LA-EN

Nervi sine mole (Bellarminus Vindicatus) — Acceptance as ultima dispositio and the de fide divina conclusion

by Veit (Vitus) Erbermann, S.J. (1597–1675); Würzburg, 1661; reprinted as the *Vindiciae* in the *Vivès Opera omnia Bellarmini*, vol. VII

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- Latin transcribed complete (no elisions) from the page images of the 1661 Würzburg edition: vol. 1 (Partes 1–2), MDZ bsb10773318; vol. 2 (Partes 3–4), MDZ bsb10773320. Loci: Tom. I, lib. III, cap. 3 (printed p. 313) and cap. 6 §.2 (printed pp. 389–391 — pp. 390–391 physically misnumbered 388/390 in the print; reading order fixed by catchwords); Tom. II, lib. I, cap. 5 §.2 (printed pp. 43–45). The Vivès reprint's "Ad Caput IX" renumbering is the editors', not Erbermann's. Long-s normalized; tildes and -que expanded silently; the source's own u/v and i/j inconsistencies retained; single square brackets are original to the 1661 print (Erbermann's hypothetical words of Christ); [[p. NN]] marks page breaks editorially.
- Last Edit: July 15, 2026.
- Version: 1.1 (complete passages)
- Selection pages: 1661 Tom. I pp. 313, 389–391; Tom. II pp. 43–45

Note on this selection: the earliest near-verbatim statement of universal peaceful acceptance as the criterion of papal legitimacy so far documented in this repository — 1661, a generation before the classic manualist formulations — stated in direct answer to a proto-sedevacantist objection. Four texts, now complete. (1) Against Ames ("it is not certain de fide that this or that council was legitimate"), the acceptance-syllogism: the whole Church, pillar and ground of the truth, cannot err in what pertains to her common religion; her judgment accepting Pius IV and Trent so pertains; therefore "de fide divina est, illud fuisse legitimum" — with the pope/council equivalence ("par ratio huius numero Concilii, et hujus Papae") and the per-se-primo/secundo machinery expressly bracketed. (2) The Alexander VII text: the reigning pope's pontificate "arises immediately from the election of the Cardinals and the acceptance of the Church," founded on the divine law by which Christ gave the Church the power both of determining the mode of election and of performing the election and acceptance — with the note-taxonomy "licet hoc forte non esset juris divini, est tamen de Fide divina." (3) The three conditions of the pope as infallible rule (canonically elected AND ACCEPTED BY THE CHURCH; a

controversy of faith; an *ex cathedra* pronouncement), against Conring's first objection. (4) The centerpiece, complete for the first time across the misnumbered pages: Conring's objection — "how do we know that God does not sometimes permit the multitude to adore as Pontiff one who is not the legitimate Pontiff?" — answered by the promised-means syllogism (Christ, faithful and wise, is bound to the means his promised end requires: an incorrupt Scripture and legitimate successors in the Apostolic See), and then by the acceptance-criterion: all are legitimate successors of Peter "who, elected in whatever manner at last, are peacefully accepted and venerated as such by the greatest part of the faithful without any contradiction... whom, whether legitimately or faultily elected, the Church accepts without controversy — since on this acceptance, as on the ultimate disposition, Christ is judged to have willed to make depend that quasi-form, namely the fullest and infallible power, to be conferred immediately by Himself. And this... we rightly assert to happen in fact; and lest all things waver, and we lack a living infallible rule of Faith, thus plainly it had to be." The continuation (Conring's simony objection) then cites Pallavicino BY NAME ("as Card. Pallavicino best noted, lib. de Fide num. 143") and restates the second-election doctrine: even were the cardinals' election void, "there would still follow another election, voidable by no positive law, which the whole Church performs by accepting that man as true Pontiff" — the direct textual bridge from Bellarmine's *De Conciliis* II.19 (see the 1588 entry) through Pallavicino (1649 entry) to Kirsch (1767 entry). Classification: School 1a, cause-version (*ultima dispositio*).

Tom. II, lib. I, cap. 5, §.2 — Objections 4–5 against conciliar infallibility, with the acceptance-syllogism (printed pp. 43–45)

Latin (1661)	English
[[p. 43]] ¶ Obj. 4. In omni coetu multitudinis saepe accidit, ut maior pars vincat meliorem. Ergo Concilia in quibus decreta fiunt secundum suffragia maioris partis, possunt errare.	[[p. 43]] ¶ Obj. 4. In every assembly of a multitude it often happens that the greater part defeats the better. Therefore Councils, in which decrees are made according to the votes of the greater part, can err.
[[p. 44]] Bell. In coetibus humanis id aliquando ita contingit; non verò in Concilio legitimo, ubi Spiritus S. praesidet, & Christus est in medio eorum, qui in nomine ipsius congregati sunt, & ubi ille adest, cui dictum est ab ipsa Veritate, Rogavi pro te &c. Nam etsi maior pars resistat meliori (uti factum in Conc. Ariminensi & Ephesino 2.) tamen nunquam vincit; mox enim irritantur ejusmodi Conciliorum acta ab eo, cui convenit ex officio fratres confirmare. Amesius ut haec enervaret duo praestitit. 1. valde truncavit recitando Bell.	[[p. 44]] Bell[armine]: In human assemblies this sometimes so happens; but not in a legitimate Council, where the Holy Spirit presides, and Christ is in the midst of those who are gathered in his name, and where he is present to whom it was said by Truth itself, "I have prayed for thee," etc. For although the greater part may resist the better (as happened in the Councils of Ariminum and Ephesus II), yet it never conquers; for the acts of such Councils are soon voided by him whose office it is to confirm the brethren. Ames, to enervate this, accomplished two things: 1. he badly truncated Bellarmine's words in

<i>Latin (1661)</i>	<i>English</i>
verba. 2. ponit meras anthitheses: sed robustis probationibus opus erat ad elidendam veritatem lucidam. <i>Quod verò postulat ostendi, ubinam resideat Spiritus S. cùm nec in maiori parte Concilii semper, utpote quae potest resistere Veritati (uti de Arim. & Ephes. 2. fatetur Bell.) imò in nullo singulari Concilii membro.</i> Resp. Residet infallibiliter in eo cui Christus promisit, S. Petri haerede, eique adhaerentibus. ¶ Obj. 5. <i>Non est certum de fide divina, hoc aut illud Concilium legitimum fuisse, & legitimè hac aut illa decrevisse. Ergo Conciliorum decreta firmam, infallibilem, ac divinam fidem facere non possunt.</i> Amesius etiam hîc praeter morem diffusus est, sed frustra desudat. Nam Antecedens illud falsum esse, constat ex dictis supra Tom. 1. l. 3. c. 6. §. 2. ad 3. Instantiam Amesii. Est enim par ratio huius numero Concilii, & hujus Papae. Similiter ergo Syllogismo hoc Theologico evertimus illud Amesii antecedens: Tota Ecclesia, (utpote columna & firmamentum veritatis) non potest errare in rebus ad communem totius Ecclesiae religionem pertinentibus. Atqui iudicium quo Ecclesia acceptavit & Pium IV. & ab eodem confirmatum Concilium Tridentinum, pertinet ad communem totius Ecclesiae religionem. Ergo in hoc iudicio non potest errare Ecclesia, & consequenter de fide divina est, illud fuisse legitimum &c. Vnde non opus est hîc operosius disputare, an Propositio una de fide altera naturaliter, aut moraliter evidens inferant Conclusionem de fide, vel Theologicam? Videantur de hoc	reciting them; 2. he sets down mere antitheses: but robust proofs were needed to strike down so lucid a truth. <i>But as to his demand that it be shown where the Holy Spirit resides — since it is not always in the greater part of the Council, which can resist the Truth (as Bellarmine admits of Ariminum and Ephesus II), nay, in no single member of the Council —</i> I reply: He resides infallibly in him to whom Christ promised it, the heir of St. Peter, and in those adhering to him. ¶ Obj. 5. <i>It is not certain by divine faith that this or that Council was legitimate, and legitimately decreed these or those things. Therefore the decrees of Councils cannot produce firm, infallible, and divine faith.</i> Ames even here is diffuse beyond his custom, but sweats in vain. For that antecedent is false, as is established from what was said above, Tom. 1, book 3, chap. 6, §. 2, to Ames's third instance. For the reasoning is the same for this numerical Council and for this Pope. In the same way, therefore, we overthrow that antecedent of Ames by this theological syllogism: The whole Church (as the pillar and ground of the truth) cannot err in things pertaining to the common religion of the whole Church. But the judgment by which the Church accepted both Pius IV and the Council of Trent confirmed by him pertains to the common religion of the whole Church. Therefore in this judgment the Church cannot err, and consequently it is of divine faith that it was legitimate, etc. Hence there is no need here to dispute more laboriously whether one proposition of faith and another naturally or morally evident yield a conclusion of faith, or a theological one. On this see [[p. 45]] the Scholastics on the proemium of the First Part and on the Secunda Secundae. Gerhard brings nothing new here.

<i>Latin (1661)</i>	<i>English</i>
[[p. 45]] Scholastici in Prooem. 1. part. & in 2. 2. Gerhard. nihil hîc novi affert.	

Tom. I, lib. III, cap. 3 — the Alexander VII acceptatio- Ecclesiae text (printed p. 313)

<i>Latin (1661)</i>	<i>English</i>
[[p. 313]] ...verò illa Successio, non tantùm quae est in Rom. Pontificatu, sed etiam quatenus est in Rom. Pontificatu, sit juris divini, non est de Fide certum, sed tamen probabilissimum & Catholicis plerisque persuasum, ideo Bell. de ea loquitur, sicut solemus omnes prudenter in simili eventu loqui, scil. <i>Licet hoc forte non esset juris divini, est tamen de Fide divina</i>: sic in simili infrà c. 8. dici posset à Bell. Etsi forte non sit ex jure divino, ut Episcopi suam jurisdictionem à Papa accipiant, tamen eam ipsis competere ex Fide certum est. Ames. 3. <i>Si Successio Episcopi Romani in Pontificatu Petri ortum suum habuit ex facto Petri, tunc non institutione aut iure ullo divino: illius enim factum non constituit ius divinum.</i> Similiter arguit Gerhardus th. 17. & seqq. Resp. ut jam supra; ipsum factum supponit institutionem & ius divinum; sicuti etiam nunc Pontificatus Alexandri VII. immediatè oritur ex electione Cardinalium & acceptatione Ecclesiae; haec tamen nihil prodesset, nisi fundaretur in jure divino, quo Christus Ecclesiae dedit facultatem & determinandi modum electionis, & electionem ipsam ac acceptationem peragendi. Idem cogentur Puritani admittere de suis qualibuscunque ministris verbi Calviniani, ut consideranti patebit. <i>(The page then continues with a fresh objection, “Amesius 4. Non debet absolutè affirmari, quod est absolutè falsum...”, on the distinct question whether</i>	[[p. 313]] ...but that that Succession — not only the one which exists in the Roman Pontificate, but even insofar as it is in the Roman Pontificate — is of divine right, is not certain of Faith, but is nevertheless most probable and the persuasion of most Catholics; therefore Bellarmine speaks of it as we are all prudently accustomed to speak in a like case, namely: <i>Though this were perhaps not of divine right, it is nevertheless of divine Faith.</i> So in a like case below, chap. 8, Bellarmine could say: Even if it be perhaps not of divine right that Bishops receive their jurisdiction from the Pope, yet that it belongs to them is certain from Faith. Ames, thirdly: <i>If the Succession of the Roman Bishop in the Pontificate of Peter had its origin from a deed of Peter, then it is not by any divine institution or right: for his deed does not constitute divine right.</i> Gerhard argues similarly, th. 17 and following. I reply as already above: the deed itself presupposes the institution and the divine right; just as even now the Pontificate of Alexander VII arises immediately from the election of the Cardinals and the acceptance of the Church; yet this would profit nothing unless it were founded on the divine right by which Christ gave the Church the faculty both of determining the mode of election, and of performing the election itself and the acceptance. The Puritans will be compelled to admit the same of their Calvinist ministers of the word, whoever they may be, as will be plain to anyone who considers it. <i>(The page then continues with a fresh objection on the distinct question whether the Roman Pontiff is head of the Church by divine right — outside this unit.)</i>

Latin (1661)**English**

the Roman Pontiff is head of the Church by divine right — outside the requested unit.)

Tom. I, lib. III, cap. 6, §.2 — Conring's first objection and the three conditions (printed p. 389)

Latin (1661)**English**

[[p. 389]] Objicit eum Amesio Conringius 1. *Si DEVS permittit interdum, ut aliquandiu nullus sit Papa, aut verò (ut in Schismate) planè incertus, Ergo providentiâ divinâ non est constitutum, ut Papa sit regula Fidei. At verum est prius. Ergo & posterius. De Minore nemo dubitat. Maior item est evidens. Repugnat enim Sapientiae, ut rei, quae debet esse aeterna, stabilis & certa, principium ac regula constituatur id, quod incertum saepe est, interdum planè non superest. Resp. Majoris illius connexio nulla est, adeoque nobis est evidenter falsa si eo modo intelligatur, providentiâ divinâ esse constitutum ut Papa sit Regula Fidei, quo nos Catholici intelligimus & omnino intelligi debet; nempe tunc Papam esse infallibilem Regulam Fidei, cùm & ipse actu existit canonicè electus, acceptatúsque ab Ecclesia, & controversia aliqua agitetur de Fide, & Papa ex cathedra pronunciet. Vno horum trium deficiente (uti deficit, cùm vel Schisma est, vel Sedes vacat, vel nulla urget controversia decidenda, vel non ex cathedra definit.) non est Papa infallibilis Fidei regula.*

[[p. 389]] Conring, with Ames, objects first: *If GOD sometimes permits that for a while there is no Pope, or (as in a Schism) a plainly uncertain one, then it has not been established by divine providence that the Pope be the rule of Faith. But the former is true. Therefore also the latter. Of the Minor no one doubts. The Major likewise is evident: for it is repugnant to Wisdom that, for a thing which ought to be eternal, stable, and certain, there should be constituted as principle and rule that which is often uncertain, and sometimes plainly does not exist. I reply: that Major's connection is null, and is to us evidently false if it be understood in the sense in which we Catholics understand — and it altogether ought to be understood — that it is established by divine providence that the Pope be the Rule of Faith: namely, that the Pope is then the infallible Rule of Faith when he both actually exists, canonically elected and accepted by the Church, and some controversy of Faith is being agitated, and the Pope pronounces ex cathedra. If one of these three is lacking (as it is lacking when there is a Schism, or the See is vacant, or no controversy presses for decision, or he does not define ex cathedra), the Pope is not the infallible rule of Faith.*

Tom. I, lib. III, cap. 6, §.2 — Conring's 'multitudo adoret' objection; the pacifice-acceptantur reply; the simony continuation citing Pallavicino (printed pp. 389–391)

<i>Latin (1661)</i>	<i>English</i>
[[p. 389]] Sed Instat & quaerit Conringius: <i>Cùm non obstat DEVS, quò minùs diu satis praesint interdum nulli, [[p. 390]] interdum incerti, interdum flagitiosi Pontifices, unde novimus eiusdem permissu non fieri interdum, ut multitudo illum adoret ceu Pontificem, qui Pontifex legitimus non est? Si Syllogismo aliquo robusto discrimen istud ostenderis, magnum te virum demonstrabis.</i> Resp. Syllogismus robustus hîc esto. Quicumque fidelis & sapiens pollicetur aliquem finem se praestiturum, ille etiam obligatur ad media convenientia praestanda. Sed Christus Dn. fidelis & sapiens pollicitus est finem se praestiturum (scil. assistentiam Spiritûs S. qui maneat cum Ecclesia sua in aeternum:) Ergo Christus D. obligatur etiam ad media efficacia praestanda. Iam verò non sunt media convenientiora ad veritatem supernaturalem incorruptè servandam, quàm verbum DEI scriptum, & sensus eorum genuinus ab Interprete uno, visibili, & infallibili exhibitus. Ergo ad haec praestanda CHRISTI DN. providentia & fidelitas obligatur, scil. ad incorruptos codices SS. Scripturae (juxta modum lib. 1. cap. 3. §. explicatum,) & legitimos Successores in Sede Apostolica. Confirmo hoc, & interrogo: Annon CHRISTVS si voluisset, potuisset instituere Caput Ecclesiae infallibile, cui omnes fideles sub poena mortis	[[p. 389]] But Conring presses on and asks: <i>Since GOD does not prevent unfit men from sometimes presiding long enough — sometimes none, [[p. 390]] sometimes uncertain, sometimes wicked Pontiffs — whence do we know that it does not sometimes happen, by his permission, that the multitude adores as Pontiff one who is not the legitimate Pontiff? If you show the difference by some robust Syllogism, you will prove yourself a great man.</i> I reply: let this be the robust Syllogism. Whoever, being faithful and wise, promises that he will furnish some end, is bound also to furnish the fitting means. But Christ the Lord, faithful and wise, promised that he would furnish the end (namely the assistance of the Holy Spirit, who should remain with his Church forever). Therefore Christ the Lord is bound also to furnish the efficacious means. Now there are no fitter means for preserving supernatural truth incorrupt than the written word of GOD, and its genuine sense exhibited by one visible and infallible Interpreter. Therefore the providence and fidelity of CHRIST the Lord is bound to furnish these: namely, incorrupt codices of Holy Scripture (in the manner explained in book 1, chap. 3, §.), and legitimate Successors in the Apostolic See. I confirm this, and ask: Could not CHRIST, had he willed, have instituted an infallible Head of the Church, whom all the faithful would be bound to obey in causes of Faith under pain of eternal death — for example in these clear words: <i>[I command Thee, Simon Peter, to be the universal Pastor of</i>

Latin (1661)

aeternae tenerentur in causis
Fidei obedire, his v. g. clavis
verbis: [Ego Te Simonem
Petrum iubeo esse Pastorem
universalem Ecclesiae meae in
toto mundo, & promitto tibi &
omnibus in Rom. cathedra
legitimis successoribus, quod
velim vobis conferre
infallibilem assistentiam, ne
unquam porta inferi & haereses
praevalcant contra Ecclesiam
meam &c.] 2 Annon hoc eventu
omnes censerentur legitimi S.
Petri Successores, qui quovis
demum modo electi pacificè
acceptantur & coluntur ut tales
à maxima parte fidelium sine
ulla contradictione? Quidni?
Essent enim omnes illi legitimi
S. Petri successores, quos sive
legitimè, sive vitiose electos
sine controversia acceptat
Ecclesia, cùm **[[p. 391]]** ab hac
acceptatione tanquam ab ultima
dispositione censeretur Christus
velle pendere illam quasi
formam, potestatem scil.
plenissimam & infallibilem à se
immediatè conferendam. Et hoc
(quod de possibili non videtur
ab ullo sanae mentis homine
posse negari) meritò asserimus
nos de facto contingere; & ne
omnia nutarent, & non
haberemus regulam vivam
infallibilem Fidei, sic planè
debuit fieri.

*(Requested unit ends here, at
“sic planè debuit fieri.” The
same page 391 then continues
with a further objection, given
below for completeness.)*

English

*my Church in the whole world, and I
promise to thee and to all legitimate
successors in the Roman chair, that I
will confer on you infallible
assistance, that the gate of hell and
heresies may never prevail against
my Church, etc.] 2. And in that event,
would not all be reckoned legitimate
Successors of St. Peter who, elected
in whatever manner at last, are
peacefully accepted and venerated as
such by the greatest part of the
faithful without any contradiction?
Why not? For all those would be
legitimate successors of St. Peter
whom, whether legitimately or
faultily elected, the Church accepts
without controversy — since
[[p. 391]] on this acceptance, as on
the ultimate disposition, Christ would
be judged to have willed to make
depend that quasi-form, namely the
fullest and infallible power, to be
conferred immediately by Himself.
And this (which, as to its possibility,
does not seem deniable by any man
of sound mind) we rightly assert to
happen in fact; and lest all things
waver, and we lack a living infallible
rule of Faith, thus plainly it had to be.*

**Continuation on printed p. 391 (the
simony objection):** Conring presses
a second time: *At least the positive
laws of the Pontiffs (such as that of
Julius II in the Lateran Council, by
which every Papal election made
simoniacally is declared absolutely
invalid) render the election,
acceptance, and constitution of the
Pontiffs quite uncertain. For how
easy it is for such a simoniacal defect
to creep into an election!* I reply: It is
certain that that Constitution of Julius
II speaks not of past but of future

Latin (1661)**English**

elections. I reply, secondly: Much more probable is the opinion of Cardinal Tuschus, Sopranus, etc., that notorious Simony is required; and on that opinion it is morally certain that such an election would never be accepted by the Emperor, Kings, Bishops, etc., being Catholics — whence, on this view, no danger or uncertainty can reasonably be feared for the succession of the Popes. I reply, thirdly: Even on the opposite opinion of Bonacina, the alleged inconveniences would still not follow. The reason is that then not only does the Church supply whatever she can supply, but also (as Cardinal Pallavicino best noted, book de Fide, num. 143) [such laws] neither ought to be nor can be understood except with respect to that first election which the Lord Cardinals now make — through which, we confess, it is not rendered certain of Faith that the elect is the true Pontiff. Whence, although such an election had been void from some such impediment, there would still follow another election, voidable by no positive law, which the whole Church makes by accepting that man as the true Pontiff. For this [election]... *(the page ends here)*

**Continuation on printed
p. 391 (beyond the requested
unit):**

Instat Conringius 2.
*Saltem Pontificum leges
 positivae (uti est illa Iulij 2. in
 Conc. Later. qua omnis electio
 Papalis simoniacè facta
 absolutè declaratur invalida:)
 Pontificum electionem,
 acceptionem &
 constitutionem perincertam
 reddunt. Quàm facilè enim est,
 ut tale vitium simoniacum
 irrepit in electione? Resp.
 Certum est eam Iulij 2.
 Constitutionem non de
 praeteritis, sed de futuris
 electionibus loqui. Resp. 2.
 Multo probabilior est sententia*

Latin (1661)**English**

Card. Thusci, Sopran. &c. quod
 requiratur Simonia notoria; quâ
 sententiâ supposita moraliter
 certum est, nunquam
 acceptatum iri ejusmodi
 electionem ab Imperatore,
 Regibus, Episcopis
 &c. Catholicis, unde nullum
 juxta hoc potest periculum aut
 incertitudo successioni Paparum
 rationabiliter formidari. Resp. 3.
 Etiam juxta oppositam
 Bonacinae opinionem, adhuc
 non sequerentur incommoda,
 quae objiciuntur. Ratio est, quia
 tunc non modò Ecclesia supplet
 quicquid supplere potest, sed
 etiam (ut optimè notavit C.
 Pallavicin. lib. de Fide num.
 143.) non debent nec possunt
 intelligi, nisi respectu illius
 primae electionis, quam faciunt
 nunc DD. Cardinales, per quam
 fatemur non reddi Fide certum,
 quòd electus sit verus Pontifex.
 Vnde quamvis talis electio ex
 aliquo tali impedimento fuisset
 irrita, adhuc sequeretur alia
 electio nullo jure positivo
 irritabilis, quam facit tota
 Ecclesia, acceptando illum
 hominem pro vero Pontifice.
 Haec enim...

[[p. 392]] [Haec] enim
 acceptatio licet moveatur ex
 errore praecedenti, non est
 tamen conditionata, sed
 absoluta, cùm melius sit
 Ecclesiae habere pro Pontifice
 aliquem, qui fuerit invalidè
 electus, quàm ignoranter carere
 vero Pontifice, & eum pro tali
 venerari, qui reipsa non sit.
 Quod si Dominia rerum expedit
 non esse in incerto, & ideò
 inductae sunt praescriptiones
 non solùm jure civili, sed
 aliquae etiam longissimi
 temporis de jure gentium &
 naturali, per quas dependenter
 ab errore fit dominus rerum ille,
 qui ante non erat Dominus:

[[p. 392]] For this acceptance,
 although it be moved by a preceding
 error, is nevertheless not conditional
 but absolute; since it is better for the
 Church to have for Pontiff someone
 who was invalidly elected, than
 ignorantly to lack a true Pontiff, and
 to venerate as such one who in reality
 is not. And if it is expedient that the
 ownership of things not be uncertain
 — and therefore prescriptions have
 been introduced not only by civil law,
 but some, even of longest duration,
 by the law of nations and natural law,
 through which, in dependence on an
 error, he becomes owner of things
 who before was not owner — how
 much more is it expedient that the
 authority of the divine Vicar not be

<i>Latin (1661)</i>	<i>English</i>
quantò magis expedit non esse in incerto auctoritatem divini Vicarii? adeoque de jure divino & naturali est, ut quicumque acceptatur ab Ecclesia pro tali, evadat talis, etiamsi ante non fuerit. Huc spectat illa ratio, quae affertur in l. Barbarius. ff. de offic. ubi declaratur, quòd servus electus ignoranter in Praetorem, & pro tali habitus, non solùm fecerit acta valida, sed fuerit verus Praetor; quoniam populus Romanus qui eum pro tali habuit, potuit dispensare, & censetur ita voluisse. Quae lex non est considerata tanquam constitutio arbitraria, & proveniens à potestate juris civilis, (alioqui respexisset futura, non praeterita, super quibus lex illa decernit) sed tanquam interpretatio prudens & philosophica juris naturalis: nam independenter ab omni constitutione positiva censetur populus Romanus habuisse in illo casu voluntatem, quam expediebat eum habere. Sic ergo in praesenti negotio etiam penes totam Ecclesiam est potestas providendi sibi de legitimo Capite, quoties electores ordinarii (sive culpabiliter, sive inculpabiliter) non provident in futurum; sicut contigit, cùm eorum electio fuit irrita, & tamen habetur rata. Tunc ergo Ecclesia censetur eum eligere quem acceptat, non obstantibus quibuscunque ejus defectibus.	uncertain? And so it is of divine and natural law that whoever is accepted by the Church as such, becomes such, even if before he was not. To this pertains the reasoning brought forward in the <i>lex Barbarius</i> (<i>Digest, de officio praetorum</i>), where it is declared that a slave ignorantly elected Praetor, and held as such, not only performed valid acts but was a true Praetor; since the Roman people, who held him for such, could dispense, and is deemed so to have willed. And this law is not to be considered an arbitrary constitution proceeding from the power of civil law (otherwise it would have looked to future cases, not past ones, upon which that law decrees), but as a prudent and philosophical interpretation of natural law: for independently of every positive constitution the Roman people is deemed to have had, in that case, the will which it was expedient for it to have. So therefore, in the present business, the power of providing itself with a legitimate Head rests also with the whole Church, whenever the ordinary electors (whether culpably or inculpably) do not provide for the future — as happens when their election was void, and yet is held as ratified. Then, therefore, the Church is deemed to elect him whom she accepts, notwithstanding any defects whatsoever.